

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Janine Zajac	Team: Team # 1	CCRB Case #: 200903936	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/13/2009 10:50 PM	Location of Incident: Intersection of West 155th Street and St. Nicholas Place	18 Mo. SOL 9/13/2010	Precinct: 30		
Date/Time CV Reported Fri, 03/13/2009 11:11 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 03/13/2009 11:11 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM John Romano	10925	907189	030 PCT
2. POM John Volkan	31708	942677	030 PCT
3. POM Avery Jennings	28198	944092	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM John Romano	Abuse: PO John Romano stopped § 87(2)(b)	A . Alleged Victim Unavailable
B . POM John Romano	Abuse: PO John Romano frisked § 87(2)(b)	B . Alleged Victim Unavailable
C . POM Avery Jennings	Abuse: PO Avery Jennings searched § 87(2)(b)	C . Alleged Victim Unavailable
D . POM John Volkan	Abuse: PO John Volkan refused to provide his name and/or shield number to § 87(2)(b)	D . Substantiated
E . POM Avery Jennings	Abuse: PO Avery Jennings refused to provide his name and/or shield number to § 87(2)(b)	E . Substantiated

Case Summary

§ 87(2)(b) filed a complaint with the CCRB by using the Call Processing System on March 13, 2009 (encl. 3b-c).

At approximately 10:45 PM on March 13, 2009, § 87(2)(b) saw PO John Romano, PO John Volkan, and PO Avery Jennings stop his acquaintance, § 87(2)(b). The following allegations resulted:

- **Allegation A – Abuse of Authority:** PO John Romano stopped § 87(2)(b)
- **Allegation B – Abuse of Authority:** PO John Romano frisked § 87(2)(b)
- **Allegation C – Abuse of Authority:** PO Avery Jennings searched § 87(2)(b)
§ 87(2)(g) it is recommended that **allegations A-C** be closed as **complainant unavailable**.
- **Allegation D– Abuse of Authority:** PO John Volkan refused to provide his name and shield number to § 87(2)(b)
- **Allegation E – Abuse of Authority:** PO Avery Jennings refused to provide his name and shield number to § 87(2)(b) § 87(2)(g)
§ 87(2)(b) it is recommended that **allegations D and E** be **substantiated**.

§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2)(b)

- § 87(2)(b) old, other race, § 87(2)(b), with brown hair and brown eyes. § 87(2)(b)
§ 87(2)(b).

§ 87(2)(b) was interviewed at the CCRB on March 26, 2009 (encl. 4a-m). On March 13, 2009, at approximately 10:45 PM, § 87(2)(b) exited the 155th Street ‘A’ train station and walked downhill toward the intersection where West 155th Street, St. Nicholas Place, and Edgecombe Avenue meet in Manhattan. § 87(2)(b) saw an individual he knows from the neighborhood, § 87(2)(b) walking south on Edgecombe Avenue behind a group of other individuals. § 87(2)(b) was playing his portable video game as he was walking.

§ 87(2)(b) then observed three uniformed officers exit a marked police vehicle. PO1, identified through investigation as PO Romano, was a 5’9” tall white male, somewhat balding with buzz cut hair, with a buff build and glasses. PO2, identified through investigation as PO Jennings, was a 6’1” tall, light-skinned “Latino” male, with buzz cut hair. PO3, identified through investigation as PO Volkan, was a short, white male with a chubby build. When § 87(2)(b) was about ten feet away from an icebox belonging to a bodega that was on the east corner of St. Nicholas Place and Edgecombe Avenue, the officers pushed § 87(2)(b) against the icebox. § 87(2)(b) was unsure which officers pushed § 87(2)(b) but stated that PO Romano and PO Jennings had “the most to do with it.” § 87(2)(b) elaborated and stated that

“more than pushing, they were kind of moving him toward the ice box and pushed him up against the ice box.” The officers placed their hands on his back and shoulder in order to move him. § 87(2)(b) was completely cooperative. § 87(2)(b) had just crossed the street, and was about thirty feet away from the officers when they pushed § 87(2)(b). § 87(2)(b) noted that the group of people § 87(2)(b) was with continued to walk and did not witness the incident. § 87(2)(b) did not hear the officers give § 87(2)(b) any instructions upon approach.

The officers patted down § 87(2)(b) on his legs and under his arms and sides. PO Jennings then searched in his coat pockets. § 87(2)(b) did not see the officers search anywhere else because he began to look around to see if any other individuals were watching the situation.

§ 87(2)(b) watched as they searched § 87(2)(b) and then asked the officers what was going on. PO Volkan told § 87(2)(b) “You need to step back,” and he complied. § 87(2)(b) then told § 87(2)(b) to ask the officers why they were searching him. PO Romano then stated that a gas station had been robbed at gun point that evening. § 87(2)(b) then asked, “So you’re looking for that guy?” and the officers responded, “Yes.” § 87(2)(b) then asked, “What did that guy look like?” PO Romano responded, “We don’t really know. He fits the description.” § 87(2)(b) replied, “He’s a black man. He fits most descriptions when it comes to that.”

§ 87(2)(b) then said, “I need badge numbers.” His request was directed at all three officers, not one officer specifically. All three officers placed their hands over their badges so § 87(2)(b) was unable to read them. The officers then walked into the bodega and asked the owner a few questions. While the officers were in the bodega, § 87(2)(b) was asking § 87(2)(b) what happened and if he was alright. § 87(2)(b) asked § 87(2)(b) if the officers said anything to him before approaching him and § 87(2)(b) replied that they did not.

§ 87(2)(b) waited outside of the bodega until the officers emerged a minute later. When they emerged, § 87(2)(b) again asked them all for their badge numbers. § 87(2)(b) specifically asked PO Volkan for his badge number and he placed his hand over his badge on his uniform and said, “No no no.” § 87(2)(b) made a little bit of a “bigger scene,” and began to yell, “This is not right! This is not justice!” People began to gather around and PO Romano approached him and said, “You want my badge number? Here’s my badge number,” and showed § 87(2)(b) his badge on his uniform. § 87(2)(b) memorized it as “10925” and called 311. The officers then left. The entire incident lasted about five minutes.

§ 87(2)(b) viewed photographs after providing his statement. He recognized the photograph of PO John Romano, and identified him as the officer who showed his badge during the incident. The other photographs in the single photo display were filler photographs.

Attempts to Contact Civilians

The following attempts to contact § 87(2)(b) were made. § 87(2)(b) did not have contact information for § 87(2)(b). A Lexis Nexis search produced an address for § 87(2)(b). “Please call” letters were sent to this address on March 30, 2009 and April 15, 2009. A phone number was produced from the Lexis Nexis search, but it was disconnected. A subpoena was sent to Verizon to find alternate numbers for the address produced from the Lexis Nexis search. Results from Verizon arrived on April 8, 2009, but there were no records (encl. 16a).

NYPD Statements

Subject Officer: PO JOHN ROMANO

- § 87(2)(b) white male, § 87(2)(b), brown hair, brown eyes.
- On the date of the incident he patrolled sectors A and B. He worked from 12:30 PM until 11:35 PM with PO Caroline Gehm in uniform and in marked patrol car #1967.

Memo Book

PO Romano had the following entries in his memo book regarding this incident (encl. 8a-b). At 10:40 PM he wrote, "Male black stopped at the corner of 155th Street and St. Nicholas Place, male black refused ID. On the corner of Edgecombe Avenue." At 10:55 PM he wrote, "One UF250 done. Third party stated he would make a complaint against all of us in regards to stopping the male black."

Stop, Question, and Frisk Report

The handwritten and online Stop, Question, and Frisk reports (encl. 6a-c) show that § 87(2)(b) was stopped at the intersection of W. 155th Street and Edgecombe Avenue. The reports do not have a name on them, as § 87(2)(b) refused to provide his name. The boxes for "fits description" and "other reasonable suspicion of criminal activity" were checked, with "911 call" written in to supplement. It says that § 87(2)(b) refused to provide his name. The physical force indicated on the report is "hands on suspect" and "suspect against wall/car." The boxes for "other reasonable suspicion of weapons," "furtive movements," and "failure to comply with officers' directions leading to reasonable fear for safety" were checked in the frisk section. The report says that § 87(2)(b) was not searched and no weapon was recovered. Additional circumstances marked on the report include "report from victim/witness," "changing directions at sight of officers/flight," and "proximity to crime location."

CCRB Testimony

PO John Romano of the 30th Precinct was interviewed at the CCRB on October 9, 2009 (encl. 7a-c). PO Romano said that at approximately 10:40 PM on April 13, 2009, a call went over the radio regarding a robbery that occurred at a gas station located near West 150th Street and St. Nicholas Avenue. This was the third time this particular gas station had been robbed. PO Romano presented a robbery pattern sheet in his CCRB interview that pertains to the robberies that have occurred at this location (encl. 14a). PO Romano was at the stationhouse when the call was received. PO Romano got in to his car, and PO Volkan and PO Jennings accompanied him. PO Gehm, PO Romano's assigned partner, was not present for this incident and was at the stationhouse processing an arrest. They drove to the location of the robbery and proceeded to conduct a canvass in search of the suspect whose description had been called over the radio. PO Romano could not recall what that description was. They drove north on Edgecombe Avenue, which was the wrong way. PO Romano was the driver. They reached the intersection of West 155th Street and Edgecombe Avenue, and PO Romano saw a black male, § 87(2)(b) walking northwest. § 87(2)(b) changed the direction he was walking and headed south when he saw the police car, and he continued to glance back at the officers. § 87(2)(b) was wearing dark clothing, including jeans and possibly a hooded sweatshirt. PO Romano said that § 87(2)(b) matched the description that had been called. PO Romano described the lighting at the scene of the incident as "50/50," meaning that it was not very bright, but there was better light in front of the bodega. There was not discussion amongst the officers in the car, and PO Romano stated that it was probably just himself that decided to stop § 87(2)(b). The reason for the stop was that

§ 87(2)(b) was wearing dark clothing that matched the description that was put over the radio and that he changed directions.

PO Romano exited the car and told § 87(2)(b) to put his hands against a nearby wall. § 87(2)(b) complied and asked what the stop was about. PO Romano did not push § 87(2)(b) against the wall, and neither did the other two officers. PO Romano told him that there had been a robbery down the block and he wanted to make sure that he did not have a gun. § 87(2)(b) had not been with anyone at the time that he was stopped, but a white male had been approximately twenty feet away and did not appear to be with § 87(2)(b). PO Romano said that they received more information over the radio regarding the description of the suspect while they conducted the canvass, which occurred after other officers went to the scene of the robbery and obtained a better description to call out. PO Romano did not know what time he received the updated information and it was not noted in his memo book. He estimated that it was within minutes, and he knew that § 87(2)(b) was already stopped when the updated description was put over the radio.

PO Romano asked § 87(2)(b) for his name and address, and § 87(2)(b) provided them. PO Romano frisked § 87(2)(b) chest, back, waistband, and legs, but did not reach in to his pockets. He did not think that PO Jennings or PO Volkan assisted in frisking § 87(2)(b) and they did not have any physical interaction with him. PO Romano recalled that there was one thing, possibly a pack of cigarettes, in § 87(2)(b) pockets, but that § 87(2)(b) removed it himself. He could not recall which pocket this item was in. As PO Romano frisked § 87(2)(b) the white male, § 87(2)(b) yelled at PO Romano, “Why are you stopping a black guy? You guys are always stopping black guys.” PO Romano said, “Excuse me, sir, he fits the description of a robbery down the block. This is the third time this place has been robbed. I just want to make sure he does not have a gun on him.”

§ 87(2)(b) continued to be upset. When PO Romano finished frisking § 87(2)(b) he asked him again for his name and address so that he could write that information down. § 87(2)(b) said, “I already told you that, I’m not going to tell you again.” § 87(2)(b) was released and PO Romano then walked into a bodega on the corner. As he walked away he heard § 87(2)(b) continue to protest the stop to PO Volkan and PO Jennings. PO Romano was in the bodega for under a minute. When he exited the bodega he heard § 87(2)(b) say, “I want a name and shield number.” As PO Romano walked by § 87(2)(b) he said, “Romano, 10925.” PO Romano did not know if § 87(2)(b) directed his question at himself or at all of the officers, but he supplied his information because he was the officer who had conducted the stop. PO Romano, PO Volkan, and PO Jennings got back in their car and left the scene. He did not know if PO Volkan or PO Jennings supplied their names or shield numbers to § 87(2)(b) and he did not know if either of them placed their hands over their badges.

PO Romano presented a copy of the Stop, Question, and Frisk Report. He could not recall why he checked the box that indicated that the person refused to comply with police instructions. He said that as far as he knew, there was no physical interaction with § 87(2)(b) other than the frisk. PO Romano said that in addition to the factors already mentioned, the way that § 87(2)(b) looked back at the officers also led to the stop. He could not recall if there were other officers present during this incident other than PO Volkan and PO Jennings. PO Romano could not recall why the box indicating that § 87(2)(b) refused to comply with police directions was checked.

Subject Officer: PO AVERY JENNINGS

- § 87(2)(b) Hispanic male, § 87(2)(b), black hair, and brown eyes.
- On the date of the incident was assigned to robbery auto. He worked from 3:35 PM to 11:35 PM with PO Volkan in uniform and in marked patrol car #2358.

Memo Book

PO Jennings did not have entries in his memo book pertaining to this incident (encl. 8a-b).

CCRB Testimony

PO Jennings was interviewed at the CCRB on November 4, 2009 (encl. 9a-b). § 87(2)(g)

§ 87(2)(b) PO Jennings did not know if updated information about the suspect was called out over the radio. He said there was a quick discussion between the officers about stopping § 87(2)(b). PO Jennings said that none of the officers responded to § 87(2)(b) when he asked why § 87(2)(b) had been stopped. PO Jennings assumed that § 87(2)(b) directed his request for a badge number to all three officers, but neither he nor PO Volkan supplied their information. He said that he did not think that § 87(2)(b) needed his shield number, and that he did not say he wanted everyone's badge number. § 87(2)(b) did not say anything after PO Romano showed his badge, and neither he nor PO Volkan covered their badges. PO Jennings did not say that PO Romano went in to the nearby bodega.

Subject Officer: PO JOHN VOLKAN

- § 87(2)(b) white male, § 87(2)(b), salt-and-pepper hair, brown eyes.
- On the date of the incident was assigned to robbery auto. He worked from 3:35 PM to 11:35 PM with PO Jennings in uniform and in marked patrol car #2358.

Memo Book

PO Volkan did not have any entries in his memo book pertaining to this incident (encl. 10a-d). He wrote on a fly sheet of his memo book that at approximately 11:37 PM PO Romano completed a Stop, Question, and Frisk Report at the southeast corner of West 155th Street and Saint Nicholas Place.

CCRB Testimony

PO Volkan was interviewed at the CCRB on November 4, 2009 (encl. 11a-b). § 87(2)(g)

§ 87(2)(b) He said that none of the officers responded to § 87(2)(b) when he asked why § 87(2)(b) was stopped. PO Volkan did not say that PO Romano entered the nearby bodega. He said that § 87(2)(b) specifically directed the request for a badge number at PO Romano by saying, "I want your name and shield." PO Volkan said that none of the officers placed their hands over their shields.

NYPD Document(s)

Sprint

The report indicates that at 10:38 PM a call was made for a robbery at a gas station located at § 87(2)(b). The suspect was a black male wearing a black hat, a black jacket, black shoes and fled toward West 145th Street (encl. 13a-l). At 10:39 PM it says he had a black gun. At 10:40 PM he had a black "thing" covering his eyes. At 10:45 PM it says that the suspect was 5'11"-6'0" and was carrying a black plastic bag. At 10:48 PM it says that the suspect has a stocky build, and at 10:51 PM it says that the suspect had a black or blue Yankees baseball hat, a red bandanna, and a black down coat. At 10:57 PM the suspect is described as being in his late twenties or early thirties, with black pants, black boots, a white t-shirt, and white trim on his jacket.

§ 87(2)(e)

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- [§ 87(2)(b)] has filed the following CCRB complaints:

- [§ 87(2)(b)]

Subject Officer(s) CCRB History

- PO Romano has been a member of the service for fifteen years and there are no substantiated CCRB allegations against him (encl. 2a).
- PO Jennings has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 2c).
- PO Volkan has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 2b).

Conclusion

Identification of Subject Officer(s)

PO Romano was identified as a subject officer when [§ 87(2)(b)] recognized him in a single photo display. He also admitted to stopping [§ 87(2)(b)] and interacting with [§ 87(2)(b)]. PO Jennings and PO Volkan were identified as the other two officers who were present by PO Romano during his CCRB statement, and they both admitted to being present for the incident.

Investigative Findings and Recommendations

- **Allegation A – Abuse of Authority:** PO John Romano stopped [§ 87(2)(b)].
- **Allegation B – Abuse of Authority:** PO John Romano frisked [§ 87(2)(b)].
- **Allegation C – Abuse of Authority:** PO Avery Jennings searched [§ 87(2)(b)].

[§ 87(2)(b)] stated that he was twenty feet away from [§ 87(2)(b)] when he was initially stopped, [§ 87(2)(g)].

[§ 87(2)(b)] It is therefore recommended that **allegations A-C be closed as victim unavailable.**

- **Allegation D – Abuse of Authority:** PO John Volkan refused to provide his name and shield number to [§ 87(2)(b)].
- **Allegation E – Abuse of Authority:** PO Avery Jennings refused to provide his name and shield number to [§ 87(2)(b)].

§ 87(2)(g)

Patrol Guide 203-09 (encl. 1a), which directs officers to, “courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so.” PO Jennings said that he did not think that § 87(2)(b) needed his own shield number after PO Romano supplied his. § 87(2)(g)

As Patrol Guide 203-09 (encl. 1a) states, officers must provide their information when it is requested from them. § 87(2)(g)

It is therefore recommended that **allegations D and E** be **substantiated**.

Team: _____

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date